

JGH v JGI

[2026] SGPHC 1; PHC/10170/2025 and PHC/CC/10008/2025

Protection from Harassment Court, State Courts of the Republic of Singapore

Jurisdiction

Singapore

Area of law

Protection from Harassment Act (PFHA); harassment law

Legal question

Whether the respondent contravened the Protection from Harassment Act by staring at the claimant, shouting and banging doors, threatening to lock the claimant out, and uttering threatening words during an incident on 27 March 2025. If such contraventions occurred, whether the respondent is likely to continue such harassment and whether it is just and equitable to issue a protection order. Whether the claimant is entitled to damages.

Key facts

The claimant and her husband resided in the respondent's HDB property under a two-year tenancy agreement from 3 June 2023 to 8 April 2025. The respondent's son initially lived in the master bedroom, and the arrangement was peaceful until 14 January 2025 when the son left for an internship in Finland and the respondent (who had been residing in India) returned to the property. On 23 January 2025, the respondent informed the claimant and her husband he would reside in the property until the end of their tenancy. The claimant's husband filed a claim at the Small Claims Tribunal on 24 January 2025 alleging breach of the tenancy agreement. The respondent remained in the property until 26 February 2025, during which period the parties had unfriendly interactions. On 27 March 2025, the respondent returned unannounced and forced his way into the property, uttering the words "I will kill you" during the confrontation. The claimant filed her harassment claim on 28 March 2025 and was granted an Expedited Protection Order on 3 April 2025.

Holding

The court dismissed both the claimant's claim for a protection order and damages and the respondent's counterclaim for a protection order. The court found that the claimant did not prove on the balance of probabilities that the respondent contravened the Protection from Harassment Act by staring at her, as the video and audio evidence did not support this allegation. Regarding the allegations of shouting, banging doors, and threatening to lock them out, the court found these were not seriously pursued at trial and stemmed from the claimant's erroneous belief in exclusive possession of the property, which the Tribunal Magistrate in the Small Claims Tribunal proceedings had found to be incorrect. As to the 27 March 2025 incident, while the respondent's words "I will kill you" were prima facie threatening, the court found they were uttered as an isolated, impulsive response amid loud commotion and did not constitute harassment as understood under the PFHA, which requires determined, prolonged, or persistent conduct calculated to produce discomfort. Furthermore, even if there had been a contravention, the court found no likelihood of continuation given the tenancy had ended and the respondent lived primarily in India.

Significance

This judgment clarifies that under the Protection from Harassment Act, isolated incidents, even involving threatening words, do not constitute harassment without evidence of determined, prolonged, or persistent conduct calculated to produce discomfort, unease, or distress. The court applied an objective assessment of conduct according to commonsense meanings, as established in *Benber Dayao v Jacter Singh*. The decision demonstrates the importance of contemporaneous video evidence in supporting allegations and shows that courts will carefully scrutinize claims arising from underlying property or tenancy disputes to determine whether harassment is the true issue or merely a weaponization of harassment provisions. The judgment also emphasizes that to obtain a protection order, a claimant must satisfy all three statutory requirements: contravention of the PFHA, likelihood of continuation, and that it is just and equitable to issue the order.

Precedent impact

The judgment applies and reinforces the principles established in *Benber Dayao v Jacter Singh* regarding the commonsense and objective assessment of threatening, abusive, insulting, harassment, alarm, and distress. It also revives and applies observations from *Chee Siok Chin v Minister for Home Affairs* regarding the legislative predecessors to sections 3 and 4 of the PFHA, emphasizing that the essence of harassment includes determined, prolonged, or persistent conduct rather than isolated incidents. The decision contributes to clarifying the threshold for harassment protection under Singapore law and the evidentiary standards required.

Full judgment URL

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